

IN THE SENATE

SENATE BILL NO. 1291

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; PROVIDING LEGISLATIVE INTENT; REPEALING SECTION 33-117, IDAHO CODE, RELATING TO PUBLIC SCHOOL FINANCIAL REQUIREMENTS; REPEALING SECTION 33-125B, IDAHO CODE, RELATING TO PAY FOR SUCCESS CONTRACTING AND DUTIES OF THE STATE DEPARTMENT OF EDUCATION; REPEALING SECTION 33-140, IDAHO CODE, RELATING TO A REPORT OF HIGH PERFORMING SCHOOLS AND TEACHERS; REPEALING SECTION 33-356, IDAHO CODE, RELATING TO SCHOOL BUILDING DESIGN AND ENERGY EFFICIENCY; REPEALING SECTION 33-1010, IDAHO CODE, RELATING TO APPORTIONMENTS WHEN MINES NET PROFITS ARE CONSIDERED; REPEALING SECTION 33-1011, IDAHO CODE, RELATING TO TAXES TO BE LEVIED BY COUNTY COMMISSIONERS; REPEALING SECTION 33-1012, IDAHO CODE, RELATING TO TRANSMITTAL OF COUNTY SCHOOL MONEYS; REPEALING SECTION 33-1624, IDAHO CODE, RELATING TO RULES; REPEALING SECTION 33-2007, IDAHO CODE, RELATING TO COST OF INSTRUCTION AND POSTAGE SUBJECT REIMBURSEMENT; REPEALING SECTION 33-2213, IDAHO CODE, RELATING TO THE INDUSTRY PARTNER FUND; REPEALING SECTION 33-3305, IDAHO CODE, RELATING TO APPROPRIATION FOR ASBESTOS REMOVAL AND BUILDING DEMOLITION OF ALL ALBION STATE NORMAL SCHOOL BUILDINGS NOT OF PRACTICAL VALUE TO THE CITY OF ALBION; REPEALING SECTION 33-4605, IDAHO CODE, RELATING TO POSTSECONDARY CREDIT SCHOLARSHIP; AMENDING SECTION 33-1002, IDAHO CODE, TO REMOVE OBSOLETE LANGUAGE; AMENDING SECTION 33-3304, IDAHO CODE, TO REMOVE OBSOLETE LANGUAGE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. IDAHO CODE CLEANUP -- LEGISLATIVE INTENT. It is the intent of the Legislature to ensure that the state laws provided in Idaho Code are streamlined, up-to-date, and essential for the citizens of Idaho, while best serving the public health, safety, and welfare. In accordance with the Idaho Code Cleanup Act, following comprehensive review, the Legislature has identified the provisions of this act as obsolete, outdated, or unnecessary.

SECTION 2. That Section [33-117](#), Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Section [33-125B](#), Idaho Code, be, and the same is hereby repealed.

SECTION 4. That Section [33-140](#), Idaho Code, be, and the same is hereby repealed.

SECTION 5. That Section [33-356](#), Idaho Code, be, and the same is hereby repealed.

1 SECTION 6. That Section [33-1010](#), Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 7. That Section [33-1011](#), Idaho Code, be, and the same is hereby
4 repealed.

5 SECTION 8. That Section [33-1012](#), Idaho Code, be, and the same is hereby
6 repealed.

7 SECTION 9. That Section [33-1624](#), Idaho Code, be, and the same is hereby
8 repealed.

9 SECTION 10. That Section [33-2007](#), Idaho Code, be, and the same is hereby
10 repealed.

11 SECTION 11. That Section [33-2213](#), Idaho Code, be, and the same is hereby
12 repealed.

13 SECTION 12. That Section [33-3305](#), Idaho Code, be, and the same is hereby
14 repealed.

15 SECTION 13. That Section [33-4605](#), Idaho Code, be, and the same is hereby
16 repealed.

17 SECTION 14. That Section 33-1002, Idaho Code, be, and the same is hereby
18 amended to read as follows:

19 33-1002. EDUCATIONAL SUPPORT PROGRAM. The educational support pro-
20 gram is calculated as follows:

21 (1) State Educational Support Funds. Add the state appropriation, in-
22 cluding the moneys available in the public school income fund, together with
23 all miscellaneous revenues to determine the total state funds.

24 (2) From the total state funds subtract the following amounts needed
25 for state support of special programs provided by a school district:

26 (a) Pupil tuition-equivalency allowances as provided in section
27 33-1002B, Idaho Code;

28 (b) Transportation support program as provided in section 33-1006,
29 Idaho Code;

30 (c) Feasibility studies allowance as provided in section 33-1007A,
31 Idaho Code;

32 (d) The approved costs for border district allowance, provided in sec-
33 tion 33-1403, Idaho Code, as determined by the state superintendent of
34 public instruction;

35 (e) The approved costs for exceptional child approved contract al-
36 lowance, provided in subsection 2. of section 33-2004, Idaho Code, as
37 determined by the state superintendent of public instruction;

38 (f) Salary-based apportionment calculated as provided in sections
39 33-1004 through 33-1004F, Idaho Code;

40 (g) Unemployment insurance benefit payments according to the provi-
41 sions of section 72-1349A, Idaho Code;

42 (h) For expenditure as provided by the public school technology pro-
43 gram;

- 1 (i) For employee severance payments as provided in section 33-521,
2 Idaho Code;
- 3 (j) For distributions to the Idaho digital learning academy as provided
4 in section 33-1020, Idaho Code;
- 5 (k) For charter school facilities funds and reimbursements paid pur-
6 suant to section 33-5207, Idaho Code;
- 7 (l) For an online course portal as provided for in section 33-1024,
8 Idaho Code;
- 9 (m) For advanced opportunities as provided for in chapter 46, title 33,
10 Idaho Code;
- 11 (n) For additional math and science courses for high school students as
12 provided in section 33-1021, Idaho Code;
- 13 (o) For master teacher premiums as provided in section 33-1004I, Idaho
14 Code;
- 15 (p) For the support of provisions that provide a safe environment con-
16 ductive to student learning and maintain classroom discipline, an allo-
17 cation of three hundred dollars (\$300) per support unit;
- 18 (q) An amount specified in the appropriation bill for the public
19 schools educational support program for counseling support as provided
20 for in section 33-1212A, Idaho Code, shall be distributed for grades 8
21 through 12 as follows:
 - 22 (i) For school districts and public charter schools with one hun-
23 dred (100) or more students enrolled in grades 8 through 12, a pro
24 rata distribution based on students enrolled in grades 8 through
25 12 or eighteen thousand dollars (\$18,000), whichever is greater;
 - 26 (ii) For school districts and public charter schools with fewer
27 than one hundred (100) students enrolled in grades 8 through 12,
28 one hundred eighty dollars (\$180) per student enrolled in grades
29 8 through 12 or nine thousand dollars (\$9,000), whichever is
30 greater;
- 31 (r) An amount specified in the public schools educational support pro-
32 gram appropriation bill for literacy intervention. The disbursements
33 made to the school districts and public charter schools shall be calcu-
34 lated as follows:
 - 35 (i) Fifty percent (50%) based on average full-time equivalent
36 enrollment of students in kindergarten through grade 3 as of the
37 first Friday in November;
 - 38 (ii) Fifty percent (50%) based on the number of kindergarten
39 through grade 3 students who move a full level or who are profi-
40 cient from the spring-to-spring administration of the statewide
41 reading assessment in the prior fiscal year or, if there is not a
42 prior spring assessment for the student, from fall to spring; and
 - 43 (iii) Funds will be distributed to the school district or pub-
44 lic charter school where the student is enrolled and takes the
45 statewide reading assessment. Any school district or public char-
46 ter school that has greater than one (1) but fewer than five (5)
47 students in kindergarten through grade 3 will receive a minimum of
48 two thousand dollars (\$2,000). Economically disadvantaged stu-
49 dents shall count as one and three quarters (1.75) students for the

purpose of calculating the distribution of the funds in subparagraph (ii) of this paragraph.

(s) For mastery-based education as provided for in section 33-1632, Idaho Code; and

~~(t) For pay for success contracting as provided in section 33-125B, Idaho Code; and~~

~~(u)~~ (t) Any additional amounts as required by statute to effect administrative adjustments or as specifically required by the provisions of any bill of appropriation;

to secure the total educational support distribution funds.

(3) Average Daily Attendance. The total state average daily attendance shall be the sum of the average daily attendance of all of the school districts of the state. The state board of education shall establish rules setting forth the procedure to determine average daily attendance and the time for, and method of, submission of such report. Average daily attendance calculation shall be carried out to the nearest hundredth. Computation of average daily attendance shall also be governed by the provisions of section 33-1003A, Idaho Code.

(4) Support Units. The total state support units shall be determined by using the tables set out hereafter called computation of kindergarten support units, computation of elementary support units, computation of secondary support units, computation of exceptional education support units, and computation of alternative school support units. The sum of all of the total support units of all school districts of the state shall be the total state support units.

COMPUTATION OF KINDERGARTEN SUPPORT UNITS

Average Daily Attendance	Attendance Divisor	Units Allowed
41 or more....	40.....	1 or more as computed
31 - 40.99 ADA....	-.....	1
26 - 30.99 ADA....	-.....	.85
21 - 25.99 ADA....	-.....	.75
16 - 20.99 ADA....	-.....	.6
8 - 15.99 ADA....	-.....	.5
1 - 7.99 ADA....	-.....	count as elementary

COMPUTATION OF ELEMENTARY SUPPORT UNITS

Average Daily Attendance	Attendance Divisor	Minimum Units Allowed
300 or more ADA.....		.. 15
..23...grades 4,5 & 6....		
..22...grades 1,2 & 3....1994-95		
..21...grades 1,2 & 3....1995-96		
..20...grades 1,2 & 3....1996-97		

1		and each year thereafter.	
2	160 to 299.99 ADA...	20	8.4
3	110 to 159.99 ADA...	19	6.8
4	71.1 to 109.99 ADA...	16	4.7
5	51.7 to 71.0 ADA...	15	4.0
6	33.6 to 51.6 ADA...	13	2.8
7	16.6 to 33.5 ADA...	12	1.4
8	1.0 to 16.5 ADA...	n/a	1.0

9 COMPUTATION OF SECONDARY SUPPORT UNITS

10	Average Daily		Minimum Units
11	Attendance	Attendance Divisor	Allowed
12	750 or more....	18.5	47
13	400 - 749.99 ADA....	16	28
14	300 - 399.99 ADA....	14.5	22
15	200 - 299.99 ADA....	13.5	17
16	100 - 199.99 ADA....	12	9
17	99.99 or fewer	Units allowed as follows:	
18	Grades 7 - 12		8
19	Grades 9 - 12		6
20	Grades 7 - 9		1 per 14 ADA
21	Grades 7 - 8		1 per 16 ADA

22 COMPUTATION OF EXCEPTIONAL EDUCATION SUPPORT UNITS

23	Average Daily		Minimum Units
24	Attendance	Attendance Divisor	Allowed
25	14 or more....	14.5	1 or more as
26			computed
27	12 - 13.99....	-	1
28	8 - 11.99....	-	.75
29	4 - 7.99....	-	.5
30	1 - 3.99....	-	.25

31 COMPUTATION OF ALTERNATIVE SCHOOL SUPPORT UNITS

32 (Computation of alternative school support units shall include
33 grades 6 through 12)

34	Pupils in Attendance	Attendance Divisor	Minimum Units
35			Allowed
36	12 or more.....	12	1 or more as
37			computed

1 In applying these tables to any given separate attendance unit, no
 2 school district shall receive less total money than it would receive if it
 3 had a lesser average daily attendance in such separate attendance unit. In
 4 applying the kindergarten table to a kindergarten program of fewer days
 5 than a full school year, the support unit allowance shall be in ratio to the
 6 number of days of a full school year. The attendance of students attending
 7 an alternative school in a school district reporting fewer than one hundred
 8 (100) secondary students in average daily attendance shall not be assigned
 9 to the alternative table if the student is from a school district reporting
 10 fewer than one hundred (100) secondary students in average daily attendance,
 11 but shall instead be assigned to the secondary table of the school district
 12 in which they are attending the alternative school, unless the alternative
 13 school in question serves students from multiple districts reporting fewer
 14 than one hundred (100) secondary students in average daily attendance. The
 15 tables for exceptional education and alternative school support units shall
 16 be applicable only for programs approved by the state department of educa-
 17 tion following rules established by the state board of education. Moneys
 18 generated from computation of support units for alternative schools shall be
 19 utilized for alternative school programs. School district administrative
 20 and facility costs may be included as part of the alternative school expen-
 21 ditures.

22 (5) State Distribution Factor per Support Unit. Divide educational
 23 support program distribution funds, after subtracting the amounts necessary
 24 to pay the obligations specified in subsection (2) of this section, by the
 25 total state support units to secure the state distribution factor per sup-
 26 port unit.

27 (6) District Support Units. The number of support units for each school
 28 district in the state shall be determined as follows:

29 (a) (i) Divide the actual average daily attendance, excluding stu-
 30 dents approved for inclusion in the exceptional child educational
 31 program for the administrative schools and each of the separate
 32 schools and attendance units, by the appropriate divisor from the
 33 tables of support units in this section, then add the quotients
 34 to obtain the district's support units allowance for regular stu-
 35 dents, kindergarten through grade 12 including alternative school
 36 students. Calculations in application of this subsection shall be
 37 carried out to the nearest hundredth.

38 (ii) Divide the combined totals of the average daily attendance
 39 of all preschool, kindergarten, elementary, secondary, juvenile
 40 detention center students and students with disabilities approved
 41 for inclusion in the exceptional child program of the district by
 42 the appropriate divisor from the table for computation of excep-
 43 tional education support units to obtain the number of support
 44 units allowed for the district's approved exceptional child pro-
 45 gram. Calculations for this subsection shall be carried out to the
 46 nearest hundredth when more than one (1) unit is allowed.

47 (iii) The total number of support units of the district shall be
 48 the sum of the total support units for regular students, subpara-
 49 graph (i) of this paragraph, and the support units allowance for

the approved exceptional child program, subparagraph (ii) of this paragraph.

(b) Total District Allowance Educational Program. Multiply the district's total number of support units, carried out to the nearest hundredth, by the state distribution factor per support unit and to this product add the approved amount of programs of the district provided in subsection (2) of this section to secure the district's total allowance for the educational support program.

(c) District Share. The district's share of state apportionment is the amount of the total district allowance, paragraph (b) of this subsection.

(d) Adjustment of District Share. The contract salary of every noncertificated teacher shall be subtracted from the district's share as calculated from the provisions of paragraph (c) of this subsection.

(7) Property Tax Computation Ratio. In order to receive state funds pursuant to this section, a charter district shall utilize a school maintenance and operation property tax computation ratio for the purpose of calculating its maintenance and operation levy that is no greater than that which it utilized in tax year 1994, less four-tenths of one percent (.4%). As used herein, the term "property tax computation ratio" shall mean a ratio determined by dividing the district's certified property tax maintenance and operation budget by the actual or adjusted market value for assessment purposes as such values existed on December 31, 1993. Such maintenance and operation levy shall be based on the property tax computation ratio multiplied by the actual or adjusted market value for assessment purposes as such values existed on December 31 of the prior calendar year.

SECTION 15. That Section 33-3304, Idaho Code, be, and the same is hereby amended to read as follows:

33-3304. APPROPRIATION FOR THE DEPARTMENT OF EDUCATION AT IDAHO STATE UNIVERSITY. Fifty percent (50%) of all the moneys that now are in or which may hereafter accrue to the normal school income fund are hereby appropriated and set apart for the support and maintenance of the department of education at Idaho State University, the same to be available for such purpose immediately upon their being credited to the fund. Should the legislature, by adoption of a concurrent resolution in both houses, approve a memorandum of understanding negotiated by the Idaho department of parks and recreation between the city of Albion and other public or private agencies interested in cooperative management of an Albion Normal School Field Institute within an Albion State Normal School state park complex, the percentage share for the department of education at Idaho State University shall be reduced from fifty percent (50%) to forty-seven percent (47%). ~~In the event that the memorandum of understanding is not approved, section 33-3305, Idaho Code, shall apply.~~

SECTION 16. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.